Uday Sachdeva vs State (Nct Of Delhi) & Anr on 9 June, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 2201/2025 & CRL.M.(BAIL) 1267/2025
UDAY SACHDEVA .....Pe
Through: Mr. Shashank Garg, Sr. Advocate alongwith Mr. Arjun Syal & Ms. Mehaak Jaggi, Mr. Indhirajith Prabhakaran .M, Advocates (Thro V.C.).
versus
STATE (NCT OF DELHI) & ANR. .....Respond
Through: Mr. Utkarsh, APP for the State. Ms. Meenakshi Arora, Mr. Abhish Singh, Ms. Amrita Sharma & Mr. Akshat Choudhary, Advocates for Respondent No.2.

CORAM:
HON'BLE MR. JUSTICE TEJAS KARIA
ORDER

% 09.06.2025 CRL.M.A. 17902/2025 (Exemption)

1. Exemption is allowed, subject to all just exceptions.

2. The application stands disposed of.

3. The instant petition under Sections 482 and 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023 ['BNSS'] has been filed seeking the grant of anticipatory bail to the Petitioner in FIR No. 126/2024 dated 14.10.2024 under Sections 406/420/120B of the Indian Penal Code, 1860, registered at Police Station - Economic Offence Wing, Delhi.

4. The Petitioner submits that he is a victim of false and motivated case foisted upon him. Petitioner's father, Mr. Anup Sachdeva was an employee This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/06/2025 at 12:22:07 of Uflex Ltd. ['Uflex'] for 25 years and continued to be associated with Uflex even after retirement. The main allegation against the Petitioner is that he committed financial misconduct, including cheating, and criminal breach of trust, leading to wrongful loss to Uflex along with his father and co-accused Kamal Kapoor by misusing his position to create false invoices for fictitious services under the name of M/s Broadway Freight Forwarding ['Broadway'], where Petitioner was a shareholder for a period between 2015 and 2023. The Petitioner's father being the head of the Export Division of Uflex approved the false invoices, resulting in a financial loss of Rs. 17 crores to Uflex.

5. The Petitioner was granted interim protection in his application for anticipatory bail vide Order dated 27.03.2025, passed by the learned Additional Sessions Judge-03, South East, Saket Courts, Delhi, ['ASJ'] and has continued to remain under interim protection pursuant to the same application until it was dismissed vide Order dated 30.05.2025, passed by the learned ASJ.

6. Accordingly, the Petitioner has preferred this Petition on the following grounds:

a. The entire case is based on documentary evidence and the Investigation Officer ['IO'] has been supplied with the documents. IO has already examined the Petitioner and, therefore, there is no need for any custodial inquiry.

b. All witnesses are employees of Uflex and as Petitioner is in no way related to Uflex, he is not in a position to influence any witness. Additionally, no such instance of This is a digitally signed order.

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c. The Complaint has been lodged and the FIR has been registered only after the Petitioner's father retired from the company in 2023. During the entire tenure of the Petitioner's father there was not even a single instance of any irregularity alleged against the Petitioner's father, who was rewarded several times for his outstanding performance. Moreover, at the time of his retirement, all of his retiral benefits including gratuity were duly paid to him.

d. Petitioner is a victim of a false and motivated case and is subjected to undue harassment on account of the professional vengeance of the management of Uflex after the Petitioner's father left Uflex and had collaborated with one of the competitors of Uflex.

e. Uflex being a publicly listed company with a turnover of over Rs. 6000 crores with its shares traded on both the Bombay Stock Exchange (BSE) and National Stock Exchange (NSE), its books were reviewed at all levels through internal and statutory audits. Thus, it is inconceivable that a company which admittedly has multiple levels of review and scrutiny of its finances and accounts through both internal and external audits failed This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/06/2025 at 12:22:07 to identify a fraud of such a magnitude wherein payments were released against 400 allegedly forged and fabricated invoices issued over a period of 8 years never caught the attention of either the internal or the

statutory auditors.

f. Statutory auditors of Uflex were Ernst and Young, BDO India LLP and KAAP & Associates, who are reputed firms. In fact, the statutory auditors in their annual audit reports have time and again stated that according to the information and explanations given to them, no material fraud on the company by its officers or employees has been noticed or reported during the course of their audit.

g. TDS was deducted against each of those invoices and was duly deposited before the concerned authorities and, furthermore, Uflex has also admittedly availed GST benefits against all the allegedly false invoices.

h. As per the IO's Status Report, Uflex runs completely on software called Oracle. Therefore, it is impossible that the software would not have flagged anomalies if the payments were released in contravention/deviation from the SOP. However, neither the Complainant has furnished the Oracle data, nor the IO has ever sought or investigated this aspect of the case.

i. Further, all the invoices of Broadway were also uploaded in the database of Oracle and it is inconceivable that for 8 This is a digitally signed order.

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j. Vide order dated 30.05.2025, the Ld. ASJ dismissed the Bail Application in an arbitrary manner and mechanical manner and without appreciating that (i) prima facie no case is made out against the Petitioner; (ii) the Petitioner satisfies the triple test as laid down by judicial precedents for grant of anticipatory bail, and (iii) the entire case is documentary in nature and all documents are either in the possession of the IO or the Complainant.

k. The anticipatory bail application of the Petitioner has been rejected without assigning any cogent reasons as to whether such grounds are made out at all for rejection of the application Therefore, in view of the aforesaid, the Petitioner has grave apprehension of being arrested and hence the present Petition.

7. Issue notice. Learned APP for the State and the learned counsel for Respondent No. 2/Complainant accepts notice.

8. Let replies be filed within a period of 4 weeks. Rejoinder thereto, if any, be filed within a period of two weeks thereafter.

9. It is submitted by the learned APP that the Petitioner's father, Mr. Anup Sachdeva, has also preferred an Anticipatory Bail Application being BAIL APPLN. 2193/2025, which was listed on 06.06.2025 before the Vacation Judge and is now listed before the Roster Bench on 11.08.2025.

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10. Accordingly, list before the Roster Bench on 11.08.2025. CRL.M.(BAIL) 1267/2025

11. The present application under Section 528 of the BNSS has been filed seeking the grant of interim bail to the Petitioner.

12. Learned senior counsel for the Petitioner has submitted the following reasons for the grant of interim protection to the Petitioner herein:

> a. The Petitioner was granted bail vide Order dated 27.03.2025 by the learned ASJ, which continued till 30.05.2025 and throughout this period, the Petitioner never misused the liberty granted to him.

b. All the witnesses being employees of Uflex, the Petitioner cannot exercise any influence over them. Moreover, there is no allegation or indication, either from the IO or the Complainant, of any attempt by the Petitioner to tamper with evidence or influence any witness.

c. There are seven signatories to Uflex's bank account and out of the 400 invoices for payments only a few of them have been signed by Petitioner's father, Mr. Anup Sachdeva. The IO has not investigated who has signed the rest of the invoices for payment.

d. The Petitioner does not pose a flight risk. He has duly cooperated with the authorities by joining the preliminary inquiry and investigation in July 2024. Following the registration of the FIR on 25.02.2025, the Petitioner has responded to notices on two subsequent occasions, on This is a digitally signed order.

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e. The Petitioner's father is suffering from Stage-III Prostate Cancer, he has an elderly mother and two very young children under the age of 5 years to take care of.

13. Issue Notice. Learned APP for the State and the learned senior counsel for the Complainant / Respondent No. 2 accept notice and oppose the grant of any interim relief, relying upon the order

dated 06.06.2025 passed by the Vacation Bench in the Bail Application filed by the Petitioner's father.

14. Learned APP and learned senior counsel for the Complainant / Respondent No. 2 seek time of five days for filing their replies, which is granted. Rejoinder thereto, if any, be filed before the next date of hearing.

15. Learned senior counsel for the Petitioner on instructions submits that the Vacation Bench had orally indicated to not take any coercive steps against the Petitioner's father and that same protection be extended to the Petitioner. This submission is objected to by the learned APP and learned senior counsel for the Complainant / Respondent No. 2.

16. However, the order dated 06.06.2025 passed in the Application of Petitioner's father does not reflect any such interim direction. Accordingly, learned senior counsel for the Petitioner requests for listing this application at the earliest before the Vacation Bench.

17. Given the urgency, at the request of the learned senior counsel for the This is a digitally signed order.

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TEJAS KARIA, J (VACATION JUDGE) JUNE 9, 2025/ 'A'/'AK' Click here to check corrigendum, if any This is a digitally signed order.

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